

Non-Solvency II Firms - Certification

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1

Application and Definition

1.1

Unless otherwise stated, this Part applies to a [small non-directive insurer](#).

- 10/12/2018

1.2

In this Part, the following definition shall apply:

[employee](#)

in relation to a [firm](#), includes any [person](#) within the description set out in section 63E(9) of [FSMA](#).

- 10/12/2018

1.3

This Part does not apply to a function performed by:

1. (1) a [PRA approved person](#);
2. (2) a [person](#) who performs an [FCA controlled function](#); or

3. (3) a [non-executive director](#) in relation to their [non-executive director](#) function.

- 10/12/2018

2

Certification Functions

2.1

For the purposes of this Part, a function performed for a [firm](#) by a member of the [governing body](#) is a [certification function](#).

- 10/12/2018

2.2

A function is only a [certification function](#) to the extent that the function relates to a [regulated activity](#) carried on by a [firm](#).

- 10/12/2018

3

Performance of Certification Functions

3.1

A [firm](#) must take reasonable care to ensure that none of its [employees](#) performs a [certification function](#) under an arrangement entered into by the [firm](#) in relation to the carrying on by the [firm](#) of a [regulated activity](#), unless the [employee](#) has a valid [certificate](#) issued by the [firm](#).

- 10/12/2019
- [Past version of 3.1 before 10/12/2019](#)

3.2

A [person](#) does not perform a [certification function](#) for a [firm](#) under [2.1](#) if the [person](#) is performing any [controlled function](#) for that [firm](#).

- 10/12/2018

3.3

To the extent that:

1. (1) a [firm](#) appoints a [person](#) to perform a function which, but for this rule, would be a [certification function](#);
2. (2) the appointment solely is to provide cover for a [certification employee](#) whose absence is reasonably unforeseen; and
3. (3) the appointment is for less than four weeks;

such a [person](#) does not perform a [certification function](#).

- 10/12/2018